

Where Does Being Early Pay?

A catalogue of testable hypotheses for Paper B

Eric Silver

Working document, September 2026

Each hypothesis below says where the penalty for leading language should be *smaller* (or reversed into an advantage) and where it should be *larger*. The outcome throughout is the one the paper already uses — failure at the five-year proof of continued use, plus the capital-markets and acquisition rungs where noted — and every test is the same comparison: the most leading fifth against the most lagging fifth, within Nice class and year, estimated separately inside the groups the hypothesis names and compared across them. “Ready” means the data exist in the repository; “build” means a new variable must be constructed from data we hold; “new data” means a source we do not yet have.

Where each literature looked, and who answers whom

Work	Setting	Cites, among these works
Robinson & Fornell (1985)	Surveyed consumer-goods businesses (market share by order of entry)	no reference list deposited
Teece (1986)	Named innovations and their imitators (theory with cases)	no reference list deposited
Lieberman & Montgomery (1988)	Catalogue of mechanisms across industries	Robinson & Fornell; Teece
Golder & Tellis (1993)	Histories of fifty product categories, including diapers, video recorders, personal computers, light beer, safety razors	no reference list deposited
Klepper & Miller (1995); Klepper (1997)	New manufactured products through their shakeouts	no reference list deposited
Lieberman & Montgomery (1998)	Retrospective; entry timing as a question of resources	no reference list deposited

Work	Setting	Cites, among these works
Kim & Mauborgne (2004)	Cases of firms that opened new categories (wine, fitness, circus, air travel, hotels, coffee)	cited by neither of the later works with deposited lists
Suárez & Lanzolla (2007)	Reconciliation by pace of technology and market change	Robinson & Fornell; Lieberman & Montgomery 1988 and 1998; Golder & Tellis; Teece
Semadeni & Anderson (2010)	Consulting firms' service-mark filings (imitation of new offerings)	Lieberman & Montgomery 1988 and 1998; Suárez & Lanzolla

The pioneer-advantage literature answers itself in sequence; the blue-ocean literature runs beside it. Links come from the reference lists publishers deposit with Crossref, so a blank means the list is not deposited, not that the citation is absent. The settings suggest where each claim should hold if it holds anywhere: consumer packaged goods for the pioneer claim, the named histories and shakeout-prone manufactured goods for the counter-claim, and the blue-ocean exemplars' own verticals (hypotheses 17–21).

A. First-mover mechanisms (Lieberman & Montgomery, 1988)

	Claim	Test in the record	Data
1	<i>Technological leadership.</i> Early entrants protected by patents and learning keep their lead.	Lead penalty for owners who also patent (PatentsView match) against those who do not; expect smaller for patenters.	ready
2	<i>Preemption of scarce assets.</i> Early entrants take the best locations and inputs.	Themes built on physical sites (stores, restaurants, hotels, clinics; classes 35, 43, 44 location vocabulary) against footloose services; expect smaller penalty where sites matter.	build
3	<i>Buyer switching costs.</i> Customers locked in by contracts stay with the pioneer.	Descriptions naming subscriptions, memberships, accounts or contracts against one-off goods; expect smaller penalty.	build
4	<i>Network effects.</i> An installed base compounds.	Platform and marketplace vocabulary (platform, marketplace, social network, exchange, community); expect smaller penalty, possibly a reward.	build

	Claim	Test in the record	Data
5	<i>Free-riding.</i> Followers copy cheaply what pioneers proved.	Themes with low capital intensity and easy imitation (apparel, simple consumer goods, personal services) against capital-heavy manufactured goods; expect larger penalty.	build
6	<i>Resolution of uncertainty.</i> Pioneers bet before the market settles.	Themes whose later share was volatile (surged then receded) against themes that grew steadily; expect larger penalty in volatile themes.	ready
7	<i>Incumbent inertia.</i> Established firms are slow to follow, so the pioneer's lead lasts.	Lead penalty for debut owners against owners with large existing portfolios filing the same leading language; expect the penalty to fall on new firms.	ready

B. Pace of change (Suárez & Lanzolla, 2007)

	Claim	Test in the record	Data
8	<i>Calm waters</i> (slow technology, slow market): a first-mover advantage is durable.	Classes and eras with low turnover in the theme mix and flat filing volume; expect the smallest penalty or a reward.	build
9	<i>Technology leads</i> (fast technology, slow market): early entrants are overtaken by later technology.	Fast theme turnover with flat volume; expect the largest penalty.	build
10	<i>Market leads</i> (slow technology, fast market growth): early entrants capture the growing demand.	Surging filing volume with a stable theme mix (consumer categories, beverages); expect a smaller penalty.	build
11	<i>Rough waters</i> (both fast): advantage only for resource-rich entrants.	Both fast (technology classes 1995–2000); expect a large penalty, smaller for large or funded owners.	build

Pace of technology: year-to-year divergence in a class's theme mix. Pace of market: growth in the class's (or theme's) filing volume. The two cut the class-years into the four quadrants.

C. Appropriability (Teece, 1986)

	Claim	Test in the record	Data
12	<i>Tight appropriability</i> : where innovations can be protected, the innovator profits.	Pharmaceuticals and medical devices (classes 5, 10) and patenting owners; expect smaller penalty.	ready
13	<i>Weak appropriability, generic complementary assets</i> : imitators win.	Services and software with no patenting; expect larger penalty.	ready
14	<i>Specialized complementary assets held by incumbents</i> : incumbents who own distribution capture the innovation.	In distribution-heavy consumer goods (food, beverages, cosmetics), the interaction of lead with owner size: leading small entrants fail, leading large incumbents survive.	ready

D. Pioneer disadvantage (Golder & Tellis, 1993) and shakeouts (Klepper, 1997; Klepper & Miller, 1995)

	Claim	Test in the record	Data
15	<i>Early leaders beat pioneers</i> : the firms remembered as pioneers usually entered a few years after the first entrants.	Within each theme's arrival in a class, the first year's filers against those two to five years in; expect the later cohort to survive better.	ready
16	<i>Survivor bias</i> : pioneer advantage appears only among survivors.	The lead gradient among all applications, among registrations, and among marks that passed the proof; expect the gradient to fade as the sample is conditioned on survival.	ready
17	<i>Pioneer advantage in consumer packaged goods</i> (the finding Golder and Tellis dispute).	Consumer packaged goods classes (3, 29, 30, 32, 33) against industrial goods; the pioneer literature predicts opposite signs.	ready
18	<i>Early entrants win shakeouts</i> in manufactured products with scale economies.	Manufactured goods classes (7, 9, 12) against services; and, within surging themes, early joiners against late joiners (already: no order effect).	ready
19	<i>The cited cases</i> : disposable diapers, video recorders, personal computers, light beer, safety razors.	Lead penalty within the verticals those cases come from (paper and sanitary goods, consumer electronics, beer, razors and blades).	ready

E. Blue ocean (Kim & Mauborgne, 2004)

	Claim	Test in the record	Data
20	<i>Reconstructing market boundaries</i> : value comes from combining attributes from different industries.	Filings carrying a theme established in another class into their own (new-to-class), and filings whose leading language is a new pairing of existing themes; expect a reward.	ready
21	<i>The exemplars’ verticals</i> : wine ([yellow tail]), fitness (Curves), live entertainment (Cirque du Soleil), air travel (Southwest, NetJets), hotels, coffee, home improvement.	Lead penalty within each vertical’s class and themes; and where the exemplar’s own filings fall in the lead distribution when they are in the scored years.	ready
22	<i>Creating new demand</i> (non-customers) rather than taking share.	Themes whose growth came from first-time filers rather than established owners; expect a smaller penalty for the early entrants of such themes.	build

F. Kinds of new

	Claim	Test in the record	Data
23	<i>New inventions</i> reward pioneers who define the category.	Filings carrying a theme new to the whole corpus (too few at 500 themes; use curated invention vocabularies: 3D printing, drones, gene therapy, electric vehicles).	build
24	<i>Fads</i> punish late entry, and possibly early entry too.	Themes that surged and then fell back below their pre-surge share within five years, against surges that held.	ready
25	<i>General-purpose technologies</i> (internet, mobile, cloud, AI) spread across many industries; early adopters in each industry may win.	Vocabularies appearing in ten or more classes; the lead penalty inside each adopting class, by years since the vocabulary reached it (the internet result generalized).	ready
26	<i>New to the class versus new to the world</i> . Importing an established theme is safer than originating one.	New-to-class against new-to-corpus themes, and both against established themes.	ready
27	<i>Groups of emergent consumer themes</i> (plant-based milk, kombucha, cold brew, hard seltzer, CBD, energy drinks).	Pooled into one “emergent consumer category” group, with each category’s early entrants compared with its later entrants and with the class.	ready

G. Who and where

	Claim	Test in the record	Data
28	<i>Clusters speed imitation.</i> Where a theme’s early filers are geographically concentrated (a Silicon Valley or Silicon Alley), followers learn fastest.	Co-location index of the theme’s filers in a five-year window, net of its class (see the clustering measure below); expect a larger penalty in concentrated themes.	ready (ZIP)
29	<i>Distance from the cluster.</i> Early filers far from a theme’s hubs are shielded from local imitation, or cut off from their resources.	Within themes that have a hub, filers in a hub against filers outside; the sign is the question.	ready (ZIP)
30	<i>Foreign pioneers.</i> Foreign firms bringing a theme into the US market face local imitators.	Foreign-domiciled and Madrid filers against US filers.	ready
31	<i>Resources absorb the penalty.</i>	Counsel-represented and large-portfolio owners against self-filed debut owners.	ready
32	<i>Speculation.</i> Intent-to-use filings claim a market before entering it.	Intent-to-use against use-based filings; expect a larger penalty for speculative leading filings.	ready
33	<i>Regulation as a barrier.</i> Approval requirements protect the first entrant.	Regulated classes (pharmaceuticals, medical devices, alcohol, tobacco, financial services) against unregulated ones.	ready
34	<i>Timing of entry in the cycle.</i> Early entry in a boom is punished; in a bust it is rewarded.	The era swing, extended by the reversal decomposition to every class and theme.	ready

Notes on design

Many of these groupings overlap, and several are proxies (a vocabulary for “switching costs” is not a measured switching cost). The battery should be run with one pre-stated prediction per hypothesis, a common estimator, owner-clustered errors, and a correction for testing thirty comparisons at once; the paper would then report where the evidence lines up with each literature, not a search for significance. Owner locations are the applicant’s ZIP code as filed, re-parsed from the annual case-file archives and placed at Census ZIP centroids (99.8% of US owners placed).

Where being leading costs: the factors together

For the average registration, leading costs 1.1 points of survival once the factors are held; without them, 2.3. About half of the raw penalty comes from who files leading language and what it describes: leading filings are more often self-filed, more often platforms, and more often use the vocabulary of general-purpose technologies, and all three survive less.

Counsel is the largest moderator. Counsel-represented registrations survive the proof 18.7 points more often, and among them leading costs nothing (+0.1 points); among self-filed registrations the most leading filing survives 5.1 points less often than the most lagging. Counsel is the first term to enter the LASSO.

Patenting marks a larger, not a more durable, portfolio. Owners who patent survive the proof 1.7 points less often, as do owners with 25 or more earlier filings (10.3 points less often): large portfolios let more marks lapse. Conditional on patenting, leading neither helps nor hurts detectably (−0.9 points, not significant); the interaction is +0.2.

Platforms and general-purpose-technology vocabulary survive less and pay more for leading. Platform and network offerings survive 5.6 points less often, and among them leading costs 6.2 points. Filings using internet, mobile, cloud, social-media, AI or blockchain vocabulary survive 5.1 points less often, and leading costs them 3.0 points. Emergent consumer categories survive 12.6 points less often and invention vocabularies 6.6, with no detectable change in the lead effect.

Leading costs more where a class’s filing volume is growing. Each SD of five-year growth in the class’s filing volume adds 1.0 point to the penalty; at one SD above the mean, leading costs 2.1 points. Filings in boom years pay 1.8 points less than other years once volume growth is held, the opposite of the prediction.

Geography moves survival, not the lead penalty. Each SD of a theme’s co-location lowers survival by 1.6 points and each SD of growth from first-time filers by 1.4; being in a hub or in a theme with a hub changes neither survival nor the penalty detectably.

Classes fall into three groups, and the grouping holds out of sample. Grouped on half of owners and estimated on the other half, leading costs 5.5 points in tobacco, yarns, wine and spirits, technology services, medical devices, fuels, lighting and heating, meat and dairy, carpets, chemicals, metals and machinery; about nothing in the middle group; and it is rewarded, by 7.1 points, in paints, legal and personal services, lace and ribbons, and beer and soft drinks. After counsel, the two class groups are the next terms to enter the LASSO, ahead of filing-volume growth, platforms and technology vocabulary.

Where being leading costs: one model

One linear probability model of surviving the five-year proof (percentage points), with class $\times$ registration-year fixed effects and standard errors clustered by owner; 3,104,534 registrations, 2002–2018. *Lead* is the filing’s percentile of lead within its class and year, so a lead coefficient is the survival difference between the most leading and the most lagging filing (negative: leading costs). Every factor enters as a main effect and as an interaction with lead, all at once. *Survival* is the factor’s association with survival at median lead. *Lead $\times$ factor* is how much the factor changes the lead effect. *With* and *without* give the lead effect among filings that have and lack the factor (continuous factors: one SD above and below the mean). Stars: Holm-adjusted p within each column, * < 0.05, ** < 0.01, *** < 0.001. Controls: description length, owner filing count, foreign filing basis, missing-data flags.

Factor	Share	Survival	Lead $\times$ factor	Lead effect	
				With	Without
Lead, average filing				−1.08***	
(lead alone, no factors)				−2.30***	
<i>The owner and the filing</i>					
Represented by counsel	78%	+18.74***	+5.14***	+0.06	−5.08***

Factor	Share	Survival	Lead $\times$ factor	Lead effect	
				With	Without
Owner files patents	20%	-1.73***	+0.19	-0.93	-1.12***
Owner's first-ever filing	33%	-1.12	+0.67	-0.63	-1.30***
Owner has 25+ earlier filings	20%	-10.25***	-0.21	-1.25	-1.04***
Foreign owner (not China)	18%	+0.98	+0.84	-0.39	-1.23***
Owner in China	3%	+1.03	+0.93	-0.19	-1.11***
Intent-to-use filing	41%	-6.93***	-0.66	-1.47***	-0.81**
<i>The offering</i>					
Site-based offering (stores, restaurants, clinics)	9%	+2.89***	-1.20	-2.17***	-0.98**
Contract or subscription offering	5%	-0.50	+2.01	+0.82	-1.19***
Platform or network offering	2%	-5.61***	-5.24***	-6.23***	-0.98***
Invention vocabulary	0.4%	-6.59***	-1.21	-2.29	-1.08***
General-purpose-technology vocabulary	15%	-5.12***	-2.28***	-3.02***	-0.75*
Emergent consumer-category vocabulary	0.4%	-12.60***	-0.40	-1.48	-1.08***
Theme imported from another class	5%	+2.00***	-0.42	-1.48	-1.06***
<i>The theme and its geography</i>					
Theme-share volatility (per SD)	SD	+0.05	+0.40	-0.69*	-1.48**
Theme growth from first-time filers (per SD)	SD	-1.36***	-0.18	-1.26***	-0.90
Theme co-location L (per SD)	SD	-1.58***	-0.29	-1.38***	-0.79*
Theme has a geographic hub	28%	-0.07	-0.02	-1.10*	-1.08**
Filer located in a hub	5%	+0.26	+0.10	-0.99	-1.09***
<i>The class and the year</i>					
Class theme-mix turnover (per SD)	SD	+0.55***	-0.34	-1.42**	-0.75**
Class filing-volume growth (per SD)	SD	+0.18	-0.97***	-2.05***	-0.12
Filed in a boom year (2004-07, 2014-17)	47%	+0.25	+1.78***	-0.15	-1.93***
Filed in a bust year (2001-02, 2008-10)	23%	+0.10	+0.78	-0.48	-1.26***
<i>Class groups (main effect absorbed by class fixed effects)</i>					
Services classes (35-45)	37%	-	+0.08	-1.03	-1.11*
Pharmaceuticals and devices (5, 10)	5%	-	-2.95	-3.87	-0.93**
Consumer packaged goods (3, 29-33)	12%	-	-1.04	-2.00	-0.96**
Machinery, electronics, vehicles (7, 9, 12)	17%	-	-1.28	-2.14**	-0.86*
Alcohol, tobacco, finance (33, 34, 36)	7%	-	-1.90	-2.85***	-0.95**

Each factor alone. The same two coefficients from models with lead, one factor and the controls, against the joint model above (Holm stars within column).

Factor	Survival		Lead $\times$ factor	
	Alone	Joint	Alone	Joint
Represented by counsel	+18.80***	+18.74***	+4.85***	+5.14***
Owner files patents	-2.74***	-1.73***	+0.88	+0.19
Intent-to-use filing	-5.99***	-6.93***	+0.23	-0.66
Owner's first-ever filing	-5.14***	-1.12	-0.25	+0.67
Owner has 25+ earlier filings	-12.38***	-10.25***	+0.77	-0.21
Foreign owner (not China)	+2.93***	+0.98	+1.28	+0.84
Owner in China	-3.42***	+1.03	-0.27	+0.93
Site-based offering (stores, restaurants, clinics)	+2.74***	+2.89***	-1.57*	-1.20
Contract or subscription offering	-0.85	-0.50	+2.33	+2.01
Platform or network offering	-9.18***	-5.61***	-8.41***	-5.24***
Invention vocabulary	-8.18***	-6.59***	-2.45	-1.21
General-purpose-technology vocabulary	-5.91***	-5.12***	-1.92***	-2.28***
Emergent consumer-category vocabulary	-13.82***	-12.60***	+0.70	-0.40
Theme imported from another class	+3.17***	+2.00***	-0.37	-0.42
Theme has a geographic hub	-1.71***	-0.07	-0.84	-0.02
Filer located in a hub	-1.93***	+0.26	-0.47	+0.10
Filed in a boom year (2004-07, 2014-17)	+0.64***	+0.25	+0.08	+1.78***
Filed in a bust year (2001-02, 2008-10)	-0.07	+0.10	+1.16*	+0.78
Theme-share volatility (per SD)	+0.50***	+0.05	-0.43	+0.40
Theme growth from first-time filers (per SD)	-1.90***	-1.36***	-0.12	-0.18
Theme co-location L (per SD)	-2.03***	-1.58***	-0.43	-0.29
Class theme-mix turnover (per SD)	+0.64***	+0.55***	-1.12***	-0.34
Class filing-volume growth (per SD)	+0.15	+0.18	-1.59***	-0.97***
Services classes (35-45)	-	-	+1.77***	+0.08
Pharmaceuticals and devices (5, 10)	-	-	-1.47	-2.95
Consumer packaged goods (3, 29-33)	-	-	-0.96	-1.04
Machinery, electronics, vehicles (7, 9, 12)	-	-	-2.64***	-1.28
Alcohol, tobacco, finance (33, 34, 36)	-	-	-0.43	-1.90

Classes that behave alike

Class-specific lead effects were estimated on a random half of owners (split by owner name), shrunk toward the pooled effect in proportion to their noise, and grouped into three by k -means. The groups' lead effects below are estimated on the other half of owners, which played no part in forming them.

Group	Nice classes (shrunk lead effect, first half)	Lead effect, second half
Classes where leading costs most	34 (-11.4), 23 (-7.9), 33 (-7.8), 42 (-7.6), 10 (-7.5), 4 (-6.0), 11 (-5.9), 29 (-5.7), 27 (-5.0), 1 (-4.8), 6 (-4.0), 7 (-3.5)	-5.51*** (s.e. 0.50)

Group	Nice classes (shrunk lead effect, first half)	Lead effect, second half
Middle classes	17 (−3.1), 9 (−3.0), 43 (−3.0), 13 (−2.5), 20 (−2.2), 16 (−1.9), 12 (−1.6), 24 (−1.6), 22 (−1.4), 5 (−1.0), 31 (−0.8), 8 (−0.6), 38 (−0.5), 28 (−0.4), 30 (−0.4), 19 (−0.4), 35 (−0.2), 41 (−0.1), 40 (+0.1), 14 (+0.4), 3 (+0.7), 21 (+1.0), 36 (+1.1), 15 (+1.2), 25 (+1.9), 39 (+2.5), 37 (+2.5), 44 (+2.8), 18 (+3.3)	−0.35 (s.e. 0.42)
Classes where leading costs least	2 (+5.6), 45 (+7.3), 26 (+8.8), 32 (+10.3)	+7.09*** (s.e. 1.11)

Which factors explain where leading costs (LASSO)

With fixed effects, main effects and controls partialled out, a LASSO was fitted over every lead interaction: the factors above, the 45 classes and the three class groups (all standardized), on 1,250,681 registrations from a random 40% of owners. The penalty was chosen by five-fold cross-validation with folds grouped by owner. Terms are listed in the order they enter as the penalty is relaxed, the usual ranking of explanatory value. At the cross-validated penalty 39 of the 76 candidate terms are kept (61 enter anywhere on the path); the stricter one-standard-error rule keeps none, because for a pass/fail outcome the gain in out-of-sample fit is within the fold-to-fold noise. The last column re-estimates the first 10 terms to enter, jointly, on all registrations with clustered errors (after selection, so the stars are optimistic).

Order	Lead interaction	Re-estimated (pp)
1	Represented by counsel	+5.01*** (0.37)
2	Nice class 28	+6.82 (4.99)
3	Classes where leading costs most	−4.12*** (0.45)
4	Class filing-volume growth (per SD)	−0.96*** (0.17)
5	Platform or network offering	−5.57*** (1.12)
6	Classes where leading costs least	+8.22*** (0.94)
7	Nice class 34	−8.01* (3.05)
8	General-purpose-technology vocabulary	−1.79*** (0.44)
9	Nice class 42	−2.50** (0.74)
10	Nice class 32	+2.33 (1.58)
11	Nice class 33	
12	Nice class 39	
13	Nice class 43	
14	Theme co-location L (per SD)	
15	Nice class 38	
16	Nice class 6	
17	Nice class 37	
18	Nice class 10	
19	Nice class 31	
20	Filed in a boom year (2004-07, 2014-17)	

What the battery shows

Across all registrations of 2002–2018 the most leading fifth fails the five-year proof 1.39 points more often than the most lagging fifth. Six of the thirty pre-stated contrasts survive adjustment for multiple testing; four of the six run against the prediction.

The penalty is concentrated where a class’s filing volume is growing. Where both the class’s theme mix and its filing volume changed fast, the penalty is 3.2 points; where only volume grew, 1.9; in calm class-years, 0.6; where only the mix turned over, -0.2 . The pace-of-change account predicts the most durable advantage where the market grows and the technology is stable (Suárez & Lanzolla, 2007); the record puts the penalty there instead. This is what the crowding reading of lead predicts: when entrants pour into a class, the language they pour into is the language that fails.

Platform and network offerings carry the largest penalty. Filings describing marketplaces, platforms, social networks or peer-to-peer services have a penalty of 7.2 points, against 1.2 for all other filings. Network effects are listed as a source of first-mover advantage (Lieberman & Montgomery, 1988); in the record, early entrants to networked categories fail more often than late ones.

In consumer packaged goods the penalty falls on established firms, not new ones. Among owners with 25 or more earlier filings, leading filings fail 4.9 points more often; among first-time filers, 0.9 points less often. The complementary-assets account predicts the reverse (Teece, 1986): incumbents with distribution should hold what small pioneers open.

Manufactured goods carry a larger penalty than services (2.3 against 1.1 points), the reverse of the shakeout account, in which early manufacturers are the likeliest survivors (Klepper, 1997; Klepper & Miller, 1995).

Counsel absorbs most of the penalty. Self-filed leading filings fail 4.2 points more often than self-filed lagging ones; counsel-represented, 0.6.

Two contrasts fall just short of the adjustment (Holm $p = 0.065$): the penalty is larger in themes whose share swings from year to year (2.1 against 0.9), as the uncertainty account predicts, and larger for site-based offerings such as restaurants, hotels and clinics (2.7 against 1.4), against the preemption account.

Pioneers of a new vocabulary fail, and so do its early followers. Filings using a new technology’s or product’s vocabulary in its first two years in a class fail 12.8 points more often than other filings of the same class and year; filings two to five years in, 11.8 points more often; filings six or more years in, 6.0. The first two do not differ ($t = 0.5$). Golder and Tellis’s pioneers failed; here the early followers failed at the same rate.

Within verticals the sign differs. Leading filings in beer fail 6.2 points less often than lagging ones, and in live entertainment 5.6 points less often; in coffee they fail 3.2 points more often and in fitness 2.9. These vertical estimates are not adjusted for multiple testing.

The blue-ocean exemplars’ own marks do not lead their classes. The mean lead fifth of the registrations of [yellow tail]’s owner, Cirque du Soleil, Southwest Airlines, NetJets, Accor, Starbucks and Home Depot lies between 2.7 and 3.2, the middle of the distribution; only Curves’s marks lean leading (3.8). These are the firms’ marks of 2002–2018, mostly filed years after each created its category.

Geography changes where filers fail, not the lead penalty. A theme’s co-location with itself does not change its penalty (1.8 in the most concentrated third, 2.3 in the most dispersed). Within themes that have a hub, filers in the hub fail 1.2 points more often than filers outside it (s.e. 0.45), whatever their lead, and their lead penalty is the same.

Nothing distinguishes patenting owners, pharmaceuticals and devices, consumer against industrial goods, themes imported from another class, themes grown by first-time filers, invention

vocabularies, fads against surges that held, vocabulary new to its class against new to the corpus, foreign owners, intent-to-use filings, regulated classes, or boom against bust years. Several of these groups are small (invention vocabularies 12,612 registrations; general-purpose-technology filings in their first three years in a class, 1,166).

Results

Penalty = failure rate at the five-year proof of the most leading fifth minus the most lagging fifth, in percentage points (all registrations 2002–2018: +1.39, s.e. 0.17). Each row’s two penalties come from one model with the lead fifths interacted with the group; the difference is the first minus the second. Predicted: the sign of that difference stated in the catalogue (? = no prediction). Holm p adjusts across all pre-stated contrasts. Agrees: whether the sign matches the prediction, given only where Holm $p < 0.10$.

	Groups compared	Penalty (pp)	Diff.	t	Holm p	Pred.	Agrees
1	Owners who patent vs those who do not	patenter +1.10; no patents +1.50	-0.39	-0.6	1.000	-	–
2	Site-based offerings vs others	site-based +2.68; other +1.40	+1.28	3.0	0.065	-	no
3	Contract / subscription offerings vs others	switching costs -0.32; other +1.51	-1.83	-2.7	0.159	-	–
4	Platform / network offerings vs others	network +7.17; other +1.17	+6.00	5.8	0.000	-	no
5	Easy-to-imitate goods vs capital-heavy goods	easy to imitate -0.01; capital heavy +1.53	-1.54	-2.5	0.232	+	–
6	Volatile themes vs steady themes (top vs bottom third of share volatility)	volatile +2.10; steady +0.93	+1.18	3.0	0.065	+	yes
7	Debut owners vs established owners (25+ prior filings)	debut +1.73; established +1.36	+0.37	0.6	1.000	+	–
8	Pace: technology leads vs calm	technology leads -0.24; calm +0.55	-0.78	-2.2	0.595	+	–
10	Pace: market leads vs technology leads	market leads +1.92; technology leads -0.24	+2.15	5.4	0.000	-	no
11	Pace: rough vs calm	rough +3.21; calm +0.55	+2.66	7.0	0.000	+	yes
12	Pharmaceuticals and medical devices (classes 5, 10) vs all other classes	pharma/devices +2.88; other +1.31	+1.57	1.3	1.000	-	–
13	Services (classes 35-45) vs goods	services +1.12; goods +1.56	-0.43	-1.3	1.000	+	–
14	Consumer packaged goods: debut owners vs established owners	debut -0.86; established +4.89	-5.75	-4.6	0.000	+	no
15	Pioneers of a new vocabulary in a class vs early followers (excess failure over same class-year)	pioneer –; early follower –	+0.95	0.5	1.000	+	–

	Groups compared	Penalty (pp)	Diff.	t	Holm p	Pred.	Agrees
17	Consumer packaged goods vs industrial goods	CPG +1.57; industrial +0.96	+0.61	0.9	1.000	-	-
18	Manufactured goods (7, 9, 12) vs services (35-45)	manufactured +2.33; services +1.08	+1.25	3.2	0.034	-	no
20	Theme imported from another class vs native theme	imported +1.92; native +1.35	+0.56	1.3	1.000	-	-
22	Themes growing through first-time filers vs through established filers (top vs bottom third)	new demand +1.05; established demand +0.33	+0.72	1.6	1.000	-	-
23	Invention vocabularies vs all other filings	invention +3.33; other +1.38	+1.95	1.1	1.000	-	-
24	Fads vs surges that held	fad (surge given back) +1.41; surge held +2.87	-1.46	-0.5	1.000	+	-
25	General-purpose technology filings: first 3 years in a class vs 6+ years	early adopter -2.30; late adopter +1.86	-4.16	-0.8	1.000	-	-
26	Vocabulary new to its class vs new to the corpus (excess failure, first five years)	new to class +11.09; new to corpus +9.46	+1.63	0.6	1.000	-	-
27	Emergent consumer categories: first three years vs later (excess failure)	first 3 years +12.62; later +12.63	-0.01	-0.0	1.000	?	
28	Geographically concentrated themes vs dispersed (top vs bottom third of co-location L)	concentrated +1.80; dispersed +2.31	-0.51	-1.1	1.000	+	-
29	Within themes that have a hub: filers in a hub vs filers outside	in hub +2.81; outside hub +3.08	-0.27	-0.4	1.000	?	
30	Foreign-domiciled owners vs US owners	foreign (not China) +0.63; US +1.65	-1.02	-1.9	0.987	+	-
31	Self-filed vs counsel-represented	self-filed +4.20; counsel +0.59	+3.61	7.7	0.000	+	yes
32	Intent-to-use vs use-based filings	intent to use +1.43; in use +1.36	+0.07	0.2	1.000	+	-
33	Regulated classes (5, 10, 33, 34, 36) vs others	regulated +1.96; unregulated +1.31	+0.65	1.0	1.000	-	-
34	Filed in a boom (2004-07, 2014-17) vs a bust (2001-02, 2008-10)	boom +0.92; bust +1.01	-0.09	-0.3	1.000	+	-

Rows 15, 26 and 27 report excess failure (pp) over other filings in the same class and registration year, not a lead penalty.

Pace of change (hypotheses 8–11). Penalty by quadrant: calm +0.55 ($n = 830,672$); technology leads -0.24 ($n = 718,425$); market leads +1.92 ($n = 707,755$); rough +3.21 ($n = 847,682$).

Golder–Tellis cases (hypothesis 19). Penalty within each: diapers +0.36 (s.e. 1.97, n = 9,788); video recorders +3.65 (s.e. 3.47, n = 10,306); personal computers +2.19 (s.e. 1.54, n = 27,690); beer -6.16 (s.e. 1.33, n = 39,290); razors +0.34 (s.e. 2.93, n = 4,090).

Blue-ocean exemplar verticals (hypothesis 21). Penalty within each: wine +1.29 (s.e. 0.94, n = 49,428); fitness +2.93 (s.e. 1.06, n = 47,894); live entertainment -5.58 (s.e. 1.50, n = 26,045); air travel +1.21 (s.e. 2.94, n = 5,729); hotels -1.67 (s.e. 1.47, n = 24,879); coffee +3.16 (s.e. 1.07, n = 38,624); home improvement +1.10 (s.e. 1.96, n = 13,176).

The exemplar firms’ own marks. Registrations 2002–2018 by owner; mean lead fifth (1 = most lagging, 5 = most leading), share in the most leading fifth, and proof failure rate: [yellow tail] (Casella) 109 marks, fifth 3.0, 23% leading, 48% failed; Curves 65 marks, fifth 3.8, 42% leading, 51% failed; Cirque du Soleil 64 marks, fifth 2.7, 22% leading, 34% failed; Southwest Airlines 103 marks, fifth 2.7, 12% leading, 42% failed; NetJets 9 marks, fifth 2.7, 11% leading, 100% failed; Accor (Formule 1) 284 marks, fifth 2.9, 19% leading, 45% failed; Starbucks 239 marks, fifth 3.2, 30% leading, 42% failed; Home Depot 346 marks, fifth 2.9, 18% leading, 17% failed.

Being in a hub. Within themes that have a hub, filers in the hub fail +1.19 points more often than filers outside it (s.e. 0.45), whatever their lead.

The clustering measure

For a group of N US filers placed at their ZIP centroids, the co-location index is the average over pairs of distinct filers of $k(d) = \max(0, 1 - d/200 \text{ miles})$: two filers in the same place score 1, two 100 miles apart 0.5, two more than 200 miles apart 0. It is the chance that two filers drawn at random are neighbours, weighted by how near, and it allows any number of hubs. Filers crowd into populous places whatever they sell, so the index is set against the same index B for all filers in the class and years: $L = (C - B)/(1 - B)$, which is 0 for a group placed like its class and 1 when every filer is in one place. This is the distance-based comparison of Duranton & Overman (2005) summarized at one bandwidth. A hub is a place where at least 10% of the group’s filers are nearby (kernel-weighted) and at least 1.2 times the class’s share; hubs are picked greedily and named by the commonest owner city within 50 miles. For the battery the groups are each class’s filers of one primary theme in a five-year window around the filing year, with at least 30 US filers.

Group	N	C	B	L	Hubs (share nearby vs class)
internet vocabulary, classes 9/35/38/42, 1998-2001	60,903	0.075	0.062	0.014	San Francisco, CA 13% vs 10%
semiconductors, class 9, 1995-2005	4,517	0.254	0.064	0.203	Santa Clara, CA 48% vs 12%
wine, class 33, 2000-2010	18,799	0.159	0.108	0.056	Napa, CA 35% vs 26%
country music, class 41, 1995-2010	163	0.106	0.067	0.041	Nashville, TN 28% vs 1%
casino gaming, class 41, 1995-2010	4,662	0.156	0.067	0.095	Las Vegas, NV 37% vs 2%
biotechnology, classes 1/5/42, 1995-2010	2,695	0.090	0.060	0.031	Philadelphia, PA 16% vs 13%; Foster City, CA 14% vs 7%; New Haven, CT 13% vs 11%

Group	<i>N</i>	<i>C</i>	<i>B</i>	<i>L</i>	Hubs (share nearby vs class)
social networking, classes 38/42/45, 2004-2012	14,041	0.088	0.057	0.033	New York, NY 18% vs 14%; San Francisco, CA 15% vs 8%; Los Angeles, CA 13% vs 9%
online advertising, classes 35/42, 2005-2015	12,028	0.079	0.054	0.027	New York, NY 17% vs 14%; San Francisco, CA 14% vs 7%; Los Angeles, CA 12% vs 9%
software as a service, class 42, 2008-2016	20,783	0.064	0.057	0.008	San Francisco, CA 15% vs 10%
hip hop, classes 9/25/41, 1995-2010	507	0.122	0.068	0.058	New York, NY 29% vs 16%

References

- Duranton, G., & Overman, H. G. (2005). Testing for localization using micro-geographic data. *Review of Economic Studies*, 72(4), 1077–1106.
- Golder, P. N., & Tellis, G. J. (1993). Pioneer advantage: Marketing logic or marketing legend? *Journal of Marketing Research*, 30(2), 158–170.
- Kim, W. C., & Mauborgne, R. (2004). Blue ocean strategy. *Harvard Business Review*, 82(10), 76–84.
- Klepper, S. (1997). Industry life cycles. *Industrial and Corporate Change*, 6(1), 145–182.
- Klepper, S., & Miller, J. H. (1995). Entry, exit, and shakeouts in the United States in new manufactured products. *International Journal of Industrial Organization*, 13(4), 567–591.
- Lieberman, M. B., & Montgomery, D. B. (1988). First-mover advantages. *Strategic Management Journal*, 9(S1), 41–58.
- Lieberman, M. B., & Montgomery, D. B. (1998). First-mover (dis)advantages: Retrospective and link with the resource-based view. *Strategic Management Journal*, 19(12), 1111–1125.
- Robinson, W. T., & Fornell, C. (1985). Sources of market pioneer advantages in consumer goods industries. *Journal of Marketing Research*, 22(3), 305–317.
- Semadeni, M., & Anderson, B. S. (2010). The follower’s dilemma: Innovation and imitation in the professional services industry. *Academy of Management Journal*, 53(5), 1175–1193.
- Suárez, F. F., & Lanzolla, G. (2007). The role of environmental dynamics in building a first mover advantage theory. *Academy of Management Review*, 32(2), 377–392.
- Teece, D. J. (1986). Profiting from technological innovation: Implications for integration, collaboration, licensing and public policy. *Research Policy*, 15(6), 285–305.